

MyHOAAppeal - Educational worksheet

Short-Term Rental HOA Enforcement and Fines

Educational use only. Not legal advice. Verify against your CC&Rs and state law.

== VISUAL SUMMARY ==

Five takeaways to remember about STR bans, leases, and enforcement evidence. Use them as a one-page briefing before you write or speak.

- * Start with procedure: Map notice, cure, hearing, and decision duties before debating the aesthetics of STR bans, leases, and enforcement evidence.
- * Make the decision point explicit: Your appeal should answer whether STR enforcement followed your covenants with exhibits, timelines, and evidence.
- * Compare options deliberately: Know whether you are closer to Recorded STR ban, Rule-only ban, or Municipal + HOA overlap.
- * Write one remedy sentence: Boards skim-state waive, reduce, re-notice, or reverse in a single line tied to STR bans, leases, and enforcement evidence.
- * Keep escalation proportionate: Match collections risk and dollar amount to mediation, counsel, or court only after the packet is sent.

== PROCESS FLOW ==

1. Capture the trigger

Save the notice, portal message, invoice, or verbal summary that started the dispute about STR bans, leases, and enforcement evidence. Note the date received.

2. Pull controlling text

Locate the statute, CC&R, rule, and fine-schedule language that supposedly authorizes action on STR bans, leases, and enforcement evidence.

3. Build the evidence spine

Assemble dated photos, correspondence, ledgers, and comparables that speak directly to whether STR enforcement followed your covenants.

4. Choose the procedural path

Pick cure, informal dispute, formal hearing, payment under protest, ADR, or counsel based on deadlines and stakes around STR bans, leases, and enforcement evidence.

5. Submit a written ask

Send one clear remedy request (waive, reduce, re-notice, or reverse) tied to whether STR enforcement followed your covenants, with exhibits attached.

6. Confirm the outcome in writing

Demand or calendar a written decision, update your ledger notes, and decide whether escalation is still proportionate.

== CHECKLIST ==

Documents on hand

- ☐ Written notice or invoice tied to STR bans, leases, and enforcement evidence
- ☐ Current CC&Rs, rules, and fine schedule excerpts
- ☐ Delivery proof (certified mail, portal export, or email headers)

Evidence quality

- ☐ Dated materials that address whether STR enforcement followed your covenants
- ☐ One-page timeline of key events
- ☐ Exhibit index with short labels (A, B, C...)

Procedural safeguards

- ☐ Appeal / cure / hearing deadline calendared
- ☐ Clear written remedy (waive, reduce, re-notice, reverse)
- ☐ Plan for payment under protest if lien pressure rises

Before you stop working the file

- ☐ Confirm whether recorded str ban or rule-only ban better describes your posture
- ☐ Save a PDF export of the full packet
- ☐ Note any verbal promises in a same-day email

== TIMELINE ==

Trigger / notice | Day 0

Violation letter, invoice, or demand referencing STR bans, leases, and enforcement evidence arrives.

Document pull | Days 0-3

Gather CC&Rs, schedules, and records that control whether STR enforcement followed your covenants.

Cure or early response | Per notice (often 7-14 days)

Cure if appropriate; otherwise send a written dispute preserving hearing rights.

Hearing / board review | Often 2-6 weeks after request

Present indexed exhibits focused on STR bans, leases, and enforcement evidence; ask for a written decision.

Written decision | Promptly after hearing (document-driven)

Confirm outcome in writing; calendar any post-decision deadlines.

Escalation fork | After denial or silence

Choose payment under protest, ADR, counsel, or court based on stakes around STR bans, leases, and enforcement evidence.

== DECISION TREE (print path) ==

Use this yes/no path to decide your next action on STR bans, leases, and enforcement evidence. Outcomes are educational starting points-confirm against your CC&Rs and state law.

Q (start): Do you already have written materials covering STR bans, leases, and enforcement evidence?

- Yes - I have notices or governing excerpts -> go to quality

- No - I am starting from a verbal warning or rumor -> go to collect

Q (collect): Can you obtain the written notice, fine schedule, and relevant CC&R/rule pages within 48 hours?

- Yes - I can request or download them -> Request the file in writing today, then re-run this tree for STR bans, leases, and enforcement evidence. Do not rely on memory alone.

- No - the association will not provide records -> Send a dated records request, keep delivery proof, and note the refusal in your appeal packet about STR bans, leases, and enforcement evidence.

Q (quality): Does your packet clearly address whether STR enforcement followed your covenants?

- Yes - defects and facts are indexed -> go to deadline

- Not yet - gaps remain -> Fill gaps with dated exhibits before you argue STR bans, leases, and enforcement evidence. Incomplete packets invite denials on procedure.

Q (deadline): Is an appeal, cure, or response deadline still open?

- Yes - time remains -> Calendar the deadline, submit a written position on STR bans, leases, and enforcement evidence, and request a hearing or written decision in the same letter.

- Unsure / possibly missed -> Ask in writing for the controlling deadline and whether late submissions are accepted. Preserve STR bans, leases, and enforcement evidence arguments even while clarifying timing.

- No - the window closed -> Document why the window was missed (late notice, portal failure, etc.) and escalate via payment-under-protest, mediation, or counsel depending on stakes.

== COMPARISON SNAPSHOT ==

Columns: Recorded STR ban | Rule-only ban | Municipal + HOA overlap

Typical signal

[Recorded STR ban] Clear written basis for recorded str ban

[Rule-only ban] Partial or contested basis for rule-only ban

[Municipal + HOA overlap] High risk if you only have municipal + hoa overlap

Owner priority

[Recorded STR ban] Preserve recorded str ban with indexed proof

[Rule-only ban] Convert rule-only ban into a documented record
[Municipal + HOA overlap] Do not rely on municipal + hoa overlap alone
Board / manager reaction
[Recorded STR ban] Harder to dismiss when exhibits are complete
[Rule-only ban] May stall or ask for more information
[Municipal + HOA overlap] Often treated as insufficient without follow-up writing
Next educational move
[Recorded STR ban] Advance the formal path for STR bans, leases, and enforcement evidence
[Rule-only ban] Send a clarifying letter addressing whether STR enforcement followed your
covenants
[Municipal + HOA overlap] Collect missing documents before arguing substance
Escalation risk if ignored
[Recorded STR ban] Lower if you stay on deadline
[Rule-only ban] Medium - ambiguity can harden into denial
[Municipal + HOA overlap] Higher - municipal + hoa overlap gaps feed collections narratives

Generated for educational purposes by MyHOAAppeal.